

Demand Formation Is Not Career Readiness

A public-source rule stack showing why K-12 career language does not authorize training children to become demand

Prepared for Stacey Kahns-Gray

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Core finding

Public sources do not authorize schools to train children into demand. The career side is worker-side: marketing, media production, business, communications, analytics, public relations, and entrepreneurship. The demand side is the market object: buyer, viewer, follower, customer, user, spender, data source, potential market, or monetizable responder.

This document is not legal advice. It is a source-backed architecture for separating legitimate career instruction from unowned market-function training under compulsory school authority.

1. Executive summary

The public record supports a narrow but strong conclusion: schools may teach students about media, marketing, advertising, consumer literacy, entrepreneurship, and digital production. But that is not the same as training children to become the target market. Official occupation sources define demand as something marketers estimate, study, identify, acquire, retain, and convert - not as the student's career role. [S14, S15]

A school can defend teaching a student how to analyze an ad. It cannot use that defense to condition the student to be the ad's target. A school can defend teaching video editing, social media strategy, or campaign analytics. It cannot use that defense to normalize minors as audience inventory, data sources, attention loops, followers, spenders, or brand-responsive children without the separate safeguards that public law already attaches to children, student data, advertising, solicitation, online safety, and commercial exposure.

The strongest sentence

Nothing in career-readiness law or occupational guidance authorizes schools to train children into demand. Demand appears in the official career material as the customer, audience, buyer, user, or market being studied and converted - not as a career pathway for the child.

What this means

Question	Answer
Can schools teach marketing/media careers?	Yes, within child-protection boundaries.
Can schools teach consumer literacy?	Yes, as protection and education, not conditioning.
Can schools use career readiness to make students into buyers, followers, targets, data sources, or compulsive responders?	No public source found authorizes that.
Where does the rule stack point?	Education purpose, separation from advertising, privacy protection, no improper solicitation, no targeted profiling, internet safety, notice/opt-out where marketing information is collected, and public authorization for commercial exposure.

2. Define the issue without magic words

Use ordinary words. The question is not whether the school used the phrase demand formation. The question is whether the student is being positioned as the market target instead of being taught a legitimate occupational skill.

Demand-side positioning includes training, steering, or normalizing students as: viewers, followers, subscribers, customers, spenders, clickers, likers, sharers, brand responders, platform users, audience members, data sources, ranked/ranking participants, or monetizable attention.

Producer-side career instruction includes: media production, editing, writing, graphic design, advertising analysis, consumer protection, market research, public relations, campaign planning, analytics, ethics, privacy, disclosure, and postsecondary/career preparation.

The line

If the student is learning to...	Likely career/education side
Edit video, write copy, analyze ads, design a campaign, understand data ethics, build a protected portfolio	Worker-side skill or media literacy

If the student is learning to...	Likely career/education side
Follow, click, rank, buy, spend, desire, attach, consume, escalate, generate engagement, or surrender data for targeting	Demand-side formation - not a career pathway

3. Official career sources make demand the object, not the child role

The Bureau of Labor Statistics describes marketing managers as people who estimate demand, identify potential markets, acquire and retain customers, and help maximize profit and market share. That means the career is managing demand. The customer is not the career. [S14]

O*NET describes market research analysts as workers who collect and analyze customer demographics, preferences, needs, and buying habits to identify potential markets and factors affecting product demand. Again, demand is the thing being studied and acted upon. [S15]

Official career function	What it proves
Estimate demand	Demand is an external market condition, not a student career identity.
Identify potential markets	The market target is the object of professional work.
Acquire and retain customers	The career role belongs to the marketer, not the child being acquired or retained.
Analyze buying habits and preferences	The student may learn analysis; the student should not be converted into the analyzed object.

Use this when a district points to digital marketing, content creation, business, or media careers. Those sources may justify teaching production and analysis. They do not justify making children into customers, spenders, followers, audience inventory, or monetizable responders.

4. The public rule stack against training children into demand

No single law uses the exact phrase training children into demand. The public rule stack does the work through multiple governed categories: commercial purpose, marketing use of student information, targeted advertising, profiling, solicitation, commercial brand exposure, internet safety, blurred advertising, addictive design, and child influencer exploitation.

Rule area	Public source	Demand-side implication
School consent to data collection	FTC COPPA guidance	School consent is limited to school-authorized educational purposes and no other commercial purpose.
Targeted advertising/data monetization	FTC COPPA 2025 amendments	Children's data cannot be freely disclosed for targeted ads; separate parental consent is required for covered children.
Student information for marketing/sales	PPRA	Marketing collection/use triggers notice, inspection, and opt-out rights.
K-12 ed-tech targeting/profiling	California SOPIPA	Operators may not target ads or amass profiles about K-12 students except for K-12 school purposes.
Solicitation on school premises	California Education Code Section 51520	Students are protected from being solicited to work for, join, contribute to, or support outside organizations unless narrow conditions are met.
Commercial exposure in instructional materials	California Education Code Section 60048; CDE social content review	Brand/product/logo exposure in instruction is not presumed neutral.
Internet safety	CIPA	Schools must address minors' online safety, personal information, social networking behavior, and harmful material.
Blurred ads and influencer marketing	FTC staff paper	Businesses, influencers, and others should avoid blurring ads with educational, entertainment, or other content for children.
Addictive feeds	California SB 976 / DOJ	California treats algorithmic addictive feeds to minors as requiring parental consent under the Act.
Child online content as financial exploitation risk	California AB 1880 / SB 764	California now recognizes child online performance/content as a protected monetizable role.

4.1 FTC/COPPA: school consent is educational, not commercial

The FTC says schools may consent on behalf of parents to collection of student personal information only if the information is used for a school-authorized educational purpose and for no other commercial purpose. This is the cleanest data-purpose rule. A school cannot convert an educational tool into commercial targeting, profiling, or monetization simply because the child encountered it at school. [S1]

4.2 COPPA 2025: targeted advertising needs separate consent

The FTC's 2025 COPPA amendments require covered online services to obtain separate verifiable parental consent before disclosing children's personal information to third parties for targeted advertising or other purposes. The policy direction is clear: children's data monetization is not bundled into ordinary participation. [S2]

4.3 PPRA: student information for marketing/sales triggers notice and opt-out

PPRA covers activities involving collection, disclosure, or use of personal information collected from students for marketing or selling that information. It requires notice and opt-out structures and gives parents rights to inspect instruments used to collect student information for marketing or sales purposes. This is direct evidence that school-linked marketing extraction from students is governed, not casual. [S3, S4]

4.4 California SOIPA: no targeted ads or K-12 student profiles outside school purposes

SOIPA bars operators of K-12 school-purpose online services from knowingly engaging in targeted advertising, using covered information to amass a profile about a K-12 student except for K-12 school purposes, selling student information, or disclosing covered information outside listed exceptions. This supports the boundary between education and demand monetization. [S5]

4.5 California solicitation rule: students are not a captured market for outside organizations

Education Code Section 51520 prohibits solicitation of public-school pupils on school premises during school hours and nearby school hours to subscribe, contribute, become members, or work for an organization not directly under school control unless narrow charitable and approval conditions are met. This is not the whole answer, but it shows California already treats school-based student recruitment and market enlistment as governed. [S6]

4.6 Commercial exposure in instructional materials is not presumed neutral

California instructional-material rules and CDE social content review treat commercial brand names, products, and corporate/company logos as regulated exposure. Materials with commercial brand/product/logo exposure cannot simply be adopted without consistency with guidelines and a governing-board appropriateness finding. That matters when school programs normalize brands, platforms, creator markets, advertising systems, or monetized attention as ordinary instruction. [S7, S8]

4.7 CIPA: school internet use has a prevention frame

CIPA requires an internet safety policy addressing minors' access to inappropriate matter, safety and security in electronic communications, unauthorized disclosure/use/dissemination of personal information, measures restricting harmful materials, monitoring minors' online activities, and education about appropriate online behavior including social networking and cyberbullying. This prevents the school from saying online formation is outside its prevention frame. [S9]

4.8 FTC blurred advertising: children should not carry the burden of sorting ads from content

The FTC staff paper warns that many children lack the skills or cognitive defenses to identify and understand blurred digital advertising. It recommends that businesses, influencers, and others avoid blurring advertising with educational, entertainment, or other content, and states that disclosures alone may not be enough, especially for younger children. That is directly relevant when school content, student content, influencer logic, or platform publishing blends with promotion. [S10]

4.9 Industry standards: child-directed advertising must avoid unfair, deceptive, or inappropriate practices

CARU describes its guidelines as widely recognized standards to ensure advertising directed to children is not deceptive, unfair, or inappropriate and that children's online privacy is protected. Even industry self-regulation treats children as a special advertising audience, not as ordinary demand inventory. [S11]

4.10 Addictive feeds and minor protection

California's Attorney General describes SB 976 as making it unlawful for covered online platforms to provide addictive feeds and certain features to minors without verifiable parental consent, with rulemaking on age assurance and parental consent. This is public recognition that the design of feeds and engagement systems for minors is a governed child-protection issue. [S12]

4.11 Child influencer laws prove monetizable child content is not neutral

California's 2024 child-influencer laws protect children and teenagers who perform in online content from financial abuse; they establish trust protections for minors featured in monetized content and extend Coogan protections to minors employed as online content creators. This does not solve the school pathway. It proves the state recognizes child online content roles as monetizable and exploitative without safeguards. [S13]

5. The broader policy direction: children are not ordinary demand units

The WHO food-marketing guideline states that children are exposed to powerful marketing strategies likely to appeal to them, that food marketing harms children's food choices and dietary intake, affects purchase requests to adults, and shapes norms about consumption. This is not about K-12 career law, but it is useful public-health evidence that demand formation in children is treated as a protectable harm field. [S16]

UNICEF similarly says children's exposure to digital marketing can affect physical and mental health, privacy, economic exploitation, freedom of expression and thought, access to information, and play/rest. It specifically notes personalized ads, persuasive tactics, tracking, influencer culture, and algorithms that show what sells rather than what helps children learn and grow. [S17]

The UK Children's Code says children's data can inform techniques used to persuade children to spend more time using services, shape the content they engage with, and tailor advertisements; it requires high privacy by default and says nudge techniques should not encourage children to provide unnecessary data or weaken privacy settings. The EU Digital Services Act bans targeted advertisements to minors on online platforms and requires protections for minors. [S18, S19]

These sources matter because they show the same structural rule outside school: adults and systems are not supposed to exploit developmental vulnerability to shape children's market behavior. A compulsory school is not a weaker protection zone than a commercial platform.

6. Older media rule: children's advertising was always treated differently

The FCC's children's television rules limit commercial matter in children's programming for audiences 12 and under. FCC materials state that commercial matter is limited to 10.5 minutes per hour on weekends and 12 minutes per hour on weekdays. This older regime is not identical to digital school activity, but it is a strong comparator: children's media exposure has long carried separation and quantity rules because children are not ordinary advertising targets. [S20]

The digital-school version of that same problem is not only minutes of advertising. It is blurred purpose: instruction, student voice, content creation, brand visibility, platform publishing, data collection, audience formation, and future market participation mixed together under school authority.

7. The no-no matrix

Demand formation move	Why public sources push against it	Sources
Using school tools/data to target or profile students	COPPA school consent is only for education; SOPIPA bans targeted ads and non-school-purpose K-12 profiles; COPPA 2025 adds separate consent for targeted-ad disclosures.	S1, S2, S5
Collecting student information for marketing or sale	PPRA requires policies, parent notice, inspection, and opt-out rights for covered marketing/sales information collection.	S3, S4
Blending promotion into education, entertainment, student voice, or influencer-style content	FTC says children often lack defenses to identify blurred ads and recommends not blurring advertising with educational or entertainment content.	S10
Using compulsory school space to recruit students into outside organizational work, membership, contribution, or promotional ecosystems	California restricts solicitation of pupils at school unless narrow conditions and approvals are met.	S6
Normalizing brands, platforms, logos, or products as instructional exposure without scrutiny	California instructional-material rules treat commercial brand/product/logo exposure as a governed issue.	S7, S8
Treating social networking, online exposure, personal data, and harmful materials as outside school prevention	CIPA requires internet safety policy, monitoring minors' online activities, and instruction on appropriate online behavior/social networking.	S9
Designing or approving addictive/reward-loop feed exposure for minors	California's SB 976 treats addictive feeds and certain features to minors as requiring parental consent under the Act.	S12
Treating child online performance/content as just expression once it monetizes	California child-influencer laws recognize online content involving minors as a protected financial/exploitation category.	S13
Calling demand formation an occupation	BLS/O*NET define marketing careers as estimating, identifying, studying, acquiring, and retaining demand; demand is the object, not the career role.	S14, S15

8. Practical test for any K-12 program

Ask these questions without needing specialized labels:

Test question	If answer is yes, the demand-side issue is triggered
Is the student being positioned as audience, customer, follower, user, subscriber, buyer, donor, spender, viewer, or engagement source?	Career-readiness language is not enough; ask what child-protection model governs that exposure.
Is the student's behavior, preference, click, view, image, voice, identity, or attention being collected or converted into value for a platform, vendor, partner, school, sponsor, or market actor?	Ask for the educational purpose, data-use boundary, consent authority, and commercial-use prohibition.

Test question	If answer is yes, the demand-side issue is triggered
Is advertising, promotion, endorsement, student voice, student showcase, platform publishing, or brand exposure blurred with instruction?	FTC blurred-ad guidance and California commercial-exposure rules become relevant.
Is the school teaching students to analyze demand, or creating demand in students?	The first may be education. The second is the unowned pathway.
Could the child or parent refuse before exposure without penalty or loss of educational access?	If no, the compulsory-authority problem is stronger.
Who owns the safety model before harm?	If no named owner exists, the program is operating as unowned market-function training.

9. Common escape routes and the answer

Escape route	Answer
It is career readiness.	Career readiness can justify teaching production, analysis, marketing ethics, privacy, and communications. It does not justify making children the customer/audience/data source/demand object.
It is media literacy.	Media literacy should increase resistance to persuasion. It cannot become the vehicle for hidden persuasion or market conditioning.
It is student voice.	Student voice does not erase advertising, platform, audience, data, brand, or monetization questions.
It is digital citizenship.	Digital citizenship is a safety and ethics frame, not permission to form children into platform-dependent demand.
Students choose it.	Compulsory school authority changes the analysis. A child pathway needs notice, boundaries, refusal, and safeguards before exposure.
No one called it demand formation.	They do not have to call it demand formation. If the function positions students as market targets or responders, the demand-side question is triggered.

10. Clean formulation for a receiver

Public sources already establish that children, students, and minors receive special protection from commercial targeting, marketing extraction, blurred advertising, online profiling, addictive design, school solicitation, and instructional commercial exposure. Official career sources place demand on the object side of marketing work. Therefore, career-readiness language cannot authorize compulsory schools to train children into demand.

Use this sentence:

The authorized career side is learning to produce, analyze, disclose, protect, and understand market activity. The unauthorized demand side is using school authority to make children into the audience, customer, follower, data source, spender, or market responder.

Records still worth requesting, but only after the public architecture is set

Record	Why it matters
Educational purpose statement	Shows whether the activity was defined as education or market function.
Risk/safety assessment	Shows whether the district evaluated child-protection risk before exposure.
Parent notice/opt-out	Shows whether families could refuse before harm.
Vendor/partner contracts	Shows who benefits and what data/content/visibility terms exist.
Media release/publishing policy	Shows whether student image, voice, content, or identity became public-facing.
Advertising/sponsorship/brand policy	Shows whether promotion or commercial exposure was governed.

This keeps CPRA in its place: not the master frame, only the confirmation tool for ownership, authorization, safeguards, and absence of prevention architecture.

Sources

Source tags in the body correspond to the list below. Hyperlinks are embedded in the 'source link' text.

- [S1] **Federal Trade Commission.** *COPPA Guidance for Ed Tech Companies and Schools during the Coronavirus*. 2020. [source link](#)
- [S2] **Federal Trade Commission.** *FTC Finalizes Changes to Children's Privacy Rule Limiting Companies' Ability to Monetize Kids' Data*. 2025. [source link](#)
- [S3] **U.S. Department of Education Student Privacy Policy Office.** *What is the Protection of Pupil Rights Amendment (PPRA)?*. current. [source link](#)
- [S4] **U.S. Code.** *20 U.S.C. Section 1232h - Protection of Pupil Rights*. current. [source link](#)
- [S5] **California Legislative Information.** *SB 1177 - Student Online Personal Information Protection Act*. 2014/current statute basis. [source link](#)
- [S6] **California Legislative Information.** *Education Code Section 51520 - Solicitations*. current. [source link](#)
- [S7] **California Department of Education.** *Social Content Review - Instructional Materials*. last reviewed 2026. [source link](#)
- [S8] **California Education Code.** *Education Code Section 60048 - Commercial brand names, products, and logos in instructional materials*. current. [source link](#)
- [S9] **Universal Service Administrative Company.** *Children's Internet Protection Act (CIPA) requirements for E-rate applicants*. current. [source link](#)
- [S10] **Federal Trade Commission.** *FTC Staff Paper Details Potential Harms to Kids from Blurred Advertising*. 2023. [source link](#)
- [S11] **BBB National Programs - CARU.** *Children's Advertising Review Unit Guidelines and Guidance*. current. [source link](#)
- [S12] **California Department of Justice.** *Protecting Our Kids from Social Media Addiction Act (SB 976)*. current. [source link](#)
- [S13] **Governor of California.** *Legislation to protect the financial security of child influencers*. 2024. [source link](#)
- [S14] **U.S. Bureau of Labor Statistics.** *Advertising, Promotions, and Marketing Managers*. 2025. [source link](#)
- [S15] **O*NET Online.** *Market Research Analysts and Marketing Specialists*. current. [source link](#)
- [S16] **World Health Organization.** *Policies to protect children from the harmful impact of food marketing*. 2023. [source link](#)
- [S17] **UNICEF Child Rights and Business.** *Children and Digital Marketing*. current. [source link](#)
- [S18] **UK Information Commissioner's Office.** *Age appropriate design: a code of practice for online services*. current. [source link](#)
- [S19] **European Commission.** *The impact of the Digital Services Act on digital platforms*. 2026. [source link](#)
- [S20] **Federal Communications Commission.** *Children's Educational Television*. 2021. [source link](#)